ANNEX G
OTHER MANDATORY PROVSIONS (USDOL)

APPLICABILITY OF 2 CFR 200 and 2 CFR 700 (DECEMBER 2014)

Applicable to all

a. All provisions of 2 CFR 200, 2 CFR 700, and all Standard Provisions attached to this agreement are applicable to the grantee and to subrecipients which meet the definition of "Grantee" in part 2 CFR 200.86, unless a section specifically excludes a subrecipient from coverage. The grantee must assure that subrecipients have copies of all the attached standard provisions.

b. For any subawards made with Non-U.S. subrecipients the grantee must include the applicable "Standard Provisions for Non-US Nongovernmental Organizations." Grantees are required to ensure compliance with monitoring procedures in accordance with 2 CFR 200 and 2 CFR 700.

[END OF PROVISION]

ALLOWABLE COSTS (DECEMBER 2014)

Applicable to cost reimbursement only contracts/agreements only

a. The grantee will be reimbursed for costs incurred in carrying out the purposes of this award in accordance with the terms of this award and the applicable cost principles in effect on the date of this award.

b. It is the grantee's responsibility to ensure that costs incurred are in accordance with the applicable cost principles, meaning the costs are (1) reasonable: costs which are generally recognized as ordinary and necessary and would be incurred by a prudent person in the conduct of normal business; (2) allocable: incurred specifically for this award; and (3) allowable: conform to any limitations in this award. The grantee must obtain any prior written approvals from the Grant Officer (GO) that are required by the applicable cost principles. The grantee may obtain the GO's written determination on whether specific costs not clearly addressed in the applicable cost principles are allowable or allocable. The GO reserves the right to make a final determination on the allowability of costs.

c. USDOL will not pay any profit or fee to the grantee or subrecipients of a grant or

cooperative agreement. This restriction does not apply to procurements under this award made in accordance with Standard Provision, "Procurement Policies."

d. The grantee must retain documentation to support charges to this award for a period of three years from the date of submission of the final expenditure report in accordance with the Standard Provision, "Accounting, Audit, and Records.

e. This provision must be incorporated into all subawards and contracts, which are paid on a cost reimbursement basis.

[END OF PROVISION]

ACCOUNTING, AUDIT, AND RECORDS (DECEMBER 2012)

Applicable to all subawards and contracts with non-U.S. organizations that are for more than $10,000. Subawards of grants and cooperative agreements made to U.S. organizations are subject to the audit requirements contained in 2 CFR 200, subpart F.

a. Records and Accounting. The grantee must maintain financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, this award. Such records must comply with accounting principles generally accepted in the U.S., the cooperating country, or by the International Accounting Standards Board (a subsidiary of the International Financial Reporting Standards Foundation). Accounting records and supporting documentation must, at a minimum, be adequate to show all costs incurred under this award; receipt and use of goods and services acquired under this award; the costs of the program supplied from other sources; and the overall progress of the program. Unless otherwise notified by USDOL, the grantee records and subrecipient records that pertain to this award must be retained for a period of three years from the date of submission of the final expenditure report

b. Audits

Single Audits

U.S.-based non-profit Grantees whose total annual expenditure of Federal awards is more than USD 500,000 must have an organization-wide audit conducted in accordance with 29 CFR Parts 96 and 99, which codify the requirements of the Single Audit Act and OMB Circular A-133, and must comply with the timeframes established in those regulations for the submission of their audits to the Federal Audit Clearinghouse. Grantees must send a

copy of each single audit conducted within the timeframe of the USDOL-funded project to their assigned USDOL GOR at the time it is submitted to the Federal Audit Clearinghouse.

Attestation Engagements

USDOL has contracted with an independent auditor to conduct project-specific attestation engagements in accordance with 29 CFR Parts 96 and 99. All Grantees, including foreign-based and private for-profit Grantees, are subject to attestation engagements at USDOL's expense during the Cooperative Agreement period and must cooperate with the USDOL contract auditor if selected for examination. The attestation engagements are conducted in accordance with U.S. Generally Accepted Government Auditing Standards, and include the auditor's opinions on 1) compliance with USDOL regulations and the provisions of the Cooperative Agreement and 2) the reliability of the Grantee's financial and performance reports. For those Grantees that are subject to the requirements of the Single Audit Act, the attestation engagements will supplement and not duplicate the coverage provided by the Single Audits. Grantees scheduled for examination by the USDOL contract auditor will be notified approximately two to four weeks prior to the start of the engagement. USDOL retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending USDOL funds, regardless of the audit requirement.

c. Subawards and Contracts.

(1) If the grantee provides USDOL resources to other organizations to carry out the USDOL-financed program and activities, the grantee is responsible for monitoring such subrecipients or contractors. The costs for subrecipient audits for organizations that meet the threshold in paragraph b. are allowable. The costs for subrecipient audits for organizations that do not meet the threshold in paragraph b. are allowable only for the following types of compliance audits: activities allowed or unallowed; allowable costs/cost principles; eligibility; cost share; level of effort; earmarking; and reporting.

(2) This provision must be incorporated in its entirety into all subawards and contracts with non-U.S. organizations that are for more than $10,000. Subawards of grants and cooperative agreements made to U.S. organizations must state that the U.S. organization is subject to the audit requirements contained in 2 CFR 200, subpart F.

[END OF PROVISION]

SUBAWARDS AND CONTRACTS (DECEMBER 2014)

Applicable to all

a. Subawardees and contractors have no relationship with USDOL under the terms of this award. All required USDOL approvals must be directed through Partners of the Americas.

b. Notwithstanding any other term of this award, subawardees and contractors have no right to submit claims directly to USDOL and USDOL assumes no liability for any third party claims against the grantee.

[END OF PROVISION]

AWARD TERMINATION AND SUSPENSION (DECEMBER 2014)

Applicable to all

a. The grantee or DOL Grant Officer may terminate this award at any time, in whole or in part, upon written notice to the other party in accordance with the Standard Provision, "Notices." The termination notice must contain the reason(s) for the termination; the effective date; and, in the case of a partial termination, the portion to be terminated. If the termination is based on non-compliance, note that this termination decision may be considered in selection for future awards.

b. USDOL may suspend this award, in whole or in part, at any time, following notice to the grantee, and prohibit the grantee from incurring additional obligations chargeable to this award other than those costs specified in the notice of suspension during the period of suspension.

c. In the event the grantee or any of its employees, subrecipients, or contractors are found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined in 22 CFR 140, USDOL reserves the right to terminate this award, in whole or in part, or take any other appropriate measures including, without limitation, refund or recall of any award amount. Additionally, the grantee must make a good-faith effort to maintain a drug-free workplace and USDOL reserves the right to terminate or suspend this award if the grantee materially fails to do so.

d. Termination and Suspension Procedures. Upon receipt of, and in accordance with, a termination or suspension notice from USDOL as specified above, the grantee must take immediate action to minimize all expenditures and, in the event of termination, cancel all

obligations financed by this award to the greatest extent possible. Except as provided in this provision or as approved in writing by the GO, the grantee is not entitled to costs incurred after the effective date of termination.

e. Within 30 calendar days after the effective date of such termination, the grantee must repay to the U.S. Government all unexpended USDOL funds as of the effective date of termination, which are not otherwise obligated by a non-cancelable legally binding transaction applicable to this award.

f. Should the funds paid by USDOL to the grantee prior to the effective date of the termination of this award be insufficient to cover legally binding obligations to third parties by the grantee, the grantee may submit to USDOL within 90 calendar days after the effective date of a termination a written claim covering such grantee obligations. The GO must determine the amount(s) to be paid by USDOL to the grantee under such claim in accordance with this provision and the Standard Provision, "Allowable Costs."

g. The grantee must, to the greatest extent possible, include a provision in all subawards, including subawards and contracts, affording the grantee the right to terminate the subaward in the event USDOL terminates this award, including the refund requirement in paragraph c.

[END OF PROVISION]

USDOL ELIGIBILITY RULES FOR PROCUREMENT OF COMMODITIES AND SERVICES (JUNE 2012)

Applicable only when contract/agreement includes Procurement of Commodities and Services

a. This provision is not applicable to commodities or services that the grantee provides with private funds as part of a cost-sharing requirement, or with Program Income generated under this award.

b. Ineligible and Restricted Commodities and Services:

(1) Ineligible Commodities and Services. The grantee must not, under any circumstances, procure any of the following under this award:

(i) Military equipment,

(ii) Surveillance equipment,

(iii) Commodities and services for support of police or other law enforcement activities,
(iv) Abortion equipment and services,
(v) Luxury goods and gambling equipment, or
(vi) Weather modification equipment.

(2) Ineligible Suppliers. Any firms or individuals that do not comply with the requirements in Standard Provision "Debarment and Suspension" and Standard Provision "Preventing Terrorist Financing" must not be used to provide any commodities or services funded under this award.

(3) Restricted Commodities. The grantee must obtain prior written approval of the DOL Grant Officer or comply with required procedures under an applicable waiver, as provided by the GO when procuring any of the following commodities:

(i) Agricultural commodities,
(ii) Motor vehicles,
(iii) Pharmaceuticals,
(iv) Pesticides,
(v) Used equipment,
(vi) U.S. Government-owned excess property, or
(vii) Fertilizer.

c. Source and Nationality:
Except as may be specifically approved in advance by the GO, all commodities and services that will be reimbursed by USDOL under this award must be from the authorized geographic code specified in this award and must meet the source and nationality requirements set forth in 22 CFR 228. If the geographic code is not specified, the authorized geographic code is 937. When the total value of procurement for commodities and services during the life of this award is valued at $250,000 or less, the authorized geographic code for procurement of all goods and services to be reimbursed under this award is code 935.

d. Guidance on the eligibility of specific commodities and services may be obtained from the GO and Partners. If USDOL determines that the grantee has procured any commodities or services under this award contrary to the requirements of this provision,

and has received payment for such purposes, the GO may require the grantee to refund the entire amount of the purchase.

e. This provision must be included in all subawards and contracts, which include procurement of commodities or services.

[END OF PROVISION]

TITLE TO AND USE OF PROPERTY (DECEMBER 2014)
Applicable to all subawardees and contractors who will have property financed under this award

a. Title to all Property financed under this award vests in the grantee upon acquisition unless otherwise specified in this award.

b. Property means equipment, supplies, real property, and intangible property, each defined individually below, financed under this award or furnished by USDOL:

(1) Equipment means tangible nonexpendable personal property (including information technology systems) having a useful life of more than one year, and an acquisition cost of $5,000 or more per unit. However, consistent with the grantee's policy, lower limits may be established.

(2) Supplies means tangible personal property excluding equipment. A computing device is a supply if the acquisition cost is less than $5,000 per unit.

(3) Real Property means land, including land improvements, structures and appurtenances, including permanent fixtures.

(4) Intangible Property includes, but is not limited to, intellectual property, such as trademarks, copyrights, patents and patent applications, and debt instruments, such as bonds, mortgages, leases or other agreements between a lender and a borrower.

c. The grantee agrees to use and maintain all Property for the purpose of this award in accordance with the following procedures:

(1) The grantee must use the Property for the program for which it was acquired during the period of this award, and must not provide any third party a legal or financial interest in the property (e.g., through a mortgage, lien, or lease) without approval of USDOL.

(2) When the Property is no longer needed for the program for which it was acquired during the period of this award, the grantee must use the Property in connection with its other activities, in the following order of priority:

(i) Activities funded by USDOL, then
(ii) Activities funded by other United States Government (USG) agencies, then
(iii) As directed by the DOL Grant Officer.

d. The grantee must maintain the Property in good condition, have management procedures to protect the Property, and maintain an accurate inventory of all Property. Maintenance procedures must include the following:

(1) Accurate description of the Property, including serial number, model number, or other identifying number, acquisition date and cost, location and condition, and data on the disposition of any Property (date of disposition, sales price, method used to determine current fair market value, etc.), as applicable.

(2) A physical inventory of Property that must be taken, and the results reconciled with the equipment records, at least once every two years during the period of this award.

(3) A control system must be in effect to maintain the Property and ensure adequate safeguards to prevent loss, damage, or theft of the Property. The grantee must maintain appropriate insurance equivalent to insurance the grantee maintains for its own property. Any loss, damage, or theft must be investigated and fully documented, and the grantee must promptly notify the GO. The grantee may be liable where insurance is not sufficient to cover losses or damage.

e. Upon completion of this award, the grantee must submit to the GO a property disposition report of the following types of Property, along with a proposed disposition of such Property.

(1) All equipment that has a per unit current fair market value at the end of this award of $5,000 or more.

(2) New/unused supplies with an aggregate current fair market value at the end of this award of $5,000 or more.

(3) Real or intangible property, of any value.

f. The grantee must dispose of Property at the end of this award in accordance with the grantee's property disposition report, unless the GO directs the grantee in writing within 60 days of the GO's receipt of the grantee's property disposition report to dispose of the Property in a different manner. Disposition may include the following:

(1) The grantee may retain title with no further obligation to USDOL.

(2) The grantee may retain title, but must compensate USDOL for the USDOL share, based on the current fair market value of the Property.

(3) The grantee may be directed to transfer title to USDOL or a third party, including another implementing partner or the host country government. In such case, the grantee will be compensated for its proportional share of the Property that the grantee financed with its own funds, if any, based on the current fair market value of the Property.

g. The GO may direct, at any time during this award, that title to the Property vests in the USG or a third party, such as the cooperating country. In such cases, the grantee must maintain custody and control of the Property, until directed otherwise, and must allow reasonable access to the Property to the title holder. While in its custody and control, the grantee must follow the provisions above for protection and maintenance of the Property, and provide the GO with an annual inventory of such Property and follow any additional instructions on protection and maintenance as may be provided by the GO.

[END OF PROVISION]

GRANTEE AND EMPLOYEE CONDUCT (AUGUST 2013)
Applicable to all subawards

a. The grantee must have written policies and procedures in place to prevent personal conflicts of interest and to prevent its officers, employees, or agents from using their positions for personal gain or presenting the appearance of a personal conflict of interest. A personal conflict of interest is a situation in which an officer, employee, or agent of the grantee has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing under the award. The grantee's written policy must state that an employee, officer, or agent of the grantee, or any member of an employee's immediate family cannot receive a subaward, or have a financial or other interest in the entity selected for a subaward without disclosing the conflict and following the grantee's written policies and procedures for mitigating the conflict. In addition, the written policy must state that the officers, employees, and agents of the grantee must neither solicit nor accept gratuities, favors, or anything of monetary value from subrecipients or prospective subrecipients.

b. The grantee, its employees, and consultants are prohibited from using U.S. Government information technology systems (such as Phoenix, GLAAS, etc.), must be escorted to use U.S. Government facilities (such as office space or equipment), and may not rely on assistance from any U.S. Government clerical or technical personnel in the performance of this award, except as otherwise provided in this award.

c. The grantee, its employees, and consultants are private individuals, are not employees of the U.S. Government, and must not represent themselves as such.

d. The following requirements in this provision apply to the grantee's employees who are not citizens of the cooperating country.

(1) If the grantee's employees enjoy exemptions from import limitations, customs duties or taxes on personal property in connection with performance of this award, the sale of such personal property is governed by the rules contained in 22 CFR 136, including a prohibition from profiting from such sale, except as this may conflict with host government regulations.

(2) Any outside business dealings of the grantee's employees must be legal and not conflict in any manner with this award. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by the grantee's employees, other than work to be performed under this award.

e. In the event the conduct of any grantee employee is not in accordance with this provision or this award, the grantee must coordinate with the USDOL Mission to resolve the situation with regard to such employee including, if necessary, termination of the employee. In the case of termination of a non-host country national, the grantee must use its best efforts to cause the return of such employee to the United States, or point of origin, as appropriate.

f. The parties recognize the rights of the U.S. Chief of Mission to direct the removal from a country of any U.S. citizen, or direct the discharge from this award of any individual when, at the discretion of the U.S. Chief of Mission, it is in the best interest of the United States.

g. This provision in its entirety, including this paragraph g. must be included in all subawards.

[END OF PROVISION]

DEBARMENT AND SUSPENSION (JUNE 2012)
Applicable to all

a. The grantee must not transact or conduct business under this award with any individual or entity that has an active exclusion on the System for Award Management (SAM) (www.sam.gov) unless prior approval is received from the Grant Officer. The list contains those individuals and entities that the U.S. Government has suspended or debarred based on misconduct or a determination by the U.S. Government that the person or entity cannot be trusted to safeguard U.S. Government funds. Suspended or debarred entities or individuals are excluded from receiving any new work or any additional U.S. Government funding for the duration of the exclusion period. If the grantee has any questions about listings in the system, these must be directed to the Grant Officer.

b. The grantee must comply with Subpart C of 2 CFR Section 180, as supplemented by 2 CFR 780. USDOL may disallow costs, annul or terminate the transaction, debar or suspend the grantee, or take other remedies as appropriate, if the grantee violates this provision. Although doing so is not automatic, USDOL may terminate this award if a grantee or any of its principals meet any of the conditions listed in paragraph c. below. If such a situation arises, USDOL will consider the totality of circumstances—including the

grantee's response to the situation and any additional information submitted—when USDOL determines its response.

c. The grantee must notify the Grant Officer immediately upon learning that it or any of its principals, at any time prior to or during the duration of this award:

(1) Are presently excluded or disqualified from doing business with any U.S. Government entity;

(2) Have been convicted or found liable within the preceding three years for committing any offense indicating a lack of business integrity or business honesty such as fraud, embezzlement, theft, forgery, bribery or lying;

(3) Are presently indicted for or otherwise criminally or civilly charged by any governmental entity for any of the offenses enumerated in paragraph c.(2); or

(4) Have had one or more U.S.-funded agreements terminated for cause or default within the preceding three years.

d. Principal means—

(1) An officer, director, owner, partner, principal investigator, or other person within a participant with management or supervisory responsibilities related to a covered transaction; or

(2) A consultant or other person, whether or not employed by the participant or paid with Federal funds, who—

(i) Is in a position to handle Federal funds;
(ii) Is in a position to influence or control the use of those funds; or,
(iii) Occupies a technical or professional position capable of substantially influencing the development or outcome of an activity required to perform the covered transaction.

e. The grantee must include this provision in its entirety except for paragraphs c.(2)-(4) in any subawards or contracts entered into under this award.

[END OF PROVISION]

NONDISCRIMINATION (JUNE 2012)
Applicable to all

No U.S. citizen or legal resident shall be excluded from participation in, be denied the benefits of, or be otherwise subjected to discrimination on the basis of race, color, national origin, age, disability, or sex under any program or activity funded by this award when work under the grant is performed in the U.S. or when employees are recruited from the U.S.

Additionally, USDOL and Partners is committed to achieving and maintaining a diverse and representative workforce and a workplace free of discrimination. Based on law, Executive Order, and Agency policy, USDOL and Partners prohibits discrimination, including harassment, in its own workplace on the basis of race, color, religion, sex (including pregnancy and gender identity), national origin, disability, age, veteran's status, sexual orientation, genetic information, marital status, parental status, political affiliation, and any other conduct that does not adversely affect the performance of the employee. In addition, the Agency strongly encourages its grantees s and their subrecipients and vendors (at all tiers), performing both in the U.S. and overseas, to develop and enforce comprehensive nondiscrimination policies for their workplaces that include protection for all their employees on these expanded bases, subject to applicable law.

[END OF PROVISION]

NONDISCRIMINATION AGAINST BENEFICIARIES (NOVEMBER 2016)
Applicable to all

a. USDOL policy requires that the grantee not discriminate against any beneficiaries in implementation of this award, such as, but not limited to, by withholding, adversely impacting, or denying equitable access to the benefits provided through this award on the basis of any factor not expressly stated in the award. This includes, for example, race, color, religion, sex (including gender identity, sexual orientation, and pregnancy), national origin, disability, age, genetic information, marital status, parental status, political affiliation, or veteran's status. Nothing in this provision is intended to limit the ability of the grantee to target activities toward the assistance needs of certain populations as defined in the award.

b. The grantee must insert this provision, including this paragraph, in all subawards and contracts under this award.

[END OF PROVISION]

USDOL DISABILITY POLICY - ASSISTANCE (JUNE 2012)
Applicable to all

The grantee must not discriminate against people with disabilities in the implementation of USDOL funded programs and should demonstrate a comprehensive and consistent approach for including men, women, and children with disabilities.

[END OF PROVISION]

PILOT PROGRAM FOR ENHANCEMENT OF GRANTEE EMPLOYEE WHISTLEBLOWER PROTECTIONS (SEPTEMBER 2014)

Applicable to all

The Grantee must:

a. Inform its employees working under this award in the predominant native language of the workforce that they are afforded the employee whistleblower rights and protections provided under 41 U.S.C. § 4712; and
b. Include such requirement in any subaward or subcontract made under this award.

41 U.S.C. § 4712 states that an employee of a Grantee may not be discharged, demoted, or otherwise discriminated against as a reprisal for "whistleblowing." In addition, whistleblower protections cannot be waived by any agreement, policy, form, or condition of employment.

Whistleblowing is defined as making a disclosure "that the employee reasonably believes" is evidence of any of the following:

- Gross mismanagement of a Federal contract or grant;
- A gross waste of Federal funds;
- An abuse of authority relating to a Federal contract or grant;
- A substantial and specific danger to public health or safety; or
- A violation of law, rule, or regulation related to a Federal contract or grant (including the competition for, or negotiation of, a contract or grant).

To qualify under the statute, the employee's disclosure must be made to:

- A Member of the U.S. Congress, or a representative of a U.S. Congressional Committee;
- A cognizant U.S. Inspector General;
- The U.S. Government Accountability Office;
- A Federal employee responsible for contract or grant oversight or management at the relevant agency;
- A U.S. court or grand jury; or,
- A management official or other employee of the Grantee who has the responsibility to investigate, discover, or address misconduct.

[END OF PROVISION]

PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (MAY 2017)
Applicable to all

a. Definitions:
"Contract" has the meaning given in 2 CFR Part 200.
"Contractor" means an entity that receives a contract as defined in 2 CFR Part 200.

"Internal confidentiality agreement or statement" means a confidentiality agreement or any other written statement that the grantee requires any of its employees or subrecipients to sign regarding nondisclosure of grantee information, except that it does not include confidentiality agreements arising out of civil litigation or confidentiality agreements that grantee employees or subrecipients sign at the behest of a Federal agency.

"Subaward" has the meaning given in 2 CFR Part 200.
"Subrecipient" has the meaning given in 2 CFR Part 200.

b. The grantee must not require its employees, subrecipients, or contractors to sign or comply with internal confidentiality agreements or statements that prohibit or otherwise restrict employees, subrecipients, or contractors from lawfully reporting waste, fraud, or abuse related to the performance of a Federal award to a designated investigative or law enforcement representative of a Federal department or agency

authorized to receive such information (for example, the Agency Office of the Inspector General).

c. The grantee must notify current employees and subrecipients that prohibitions and restrictions of any preexisting internal confidentiality agreements or statements covered by this provision, to the extent that such prohibitions and restrictions are inconsistent with the prohibitions of this provision, are no longer in effect.

d. The prohibition in paragraph (b) of this provision does not contravene the requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

e. In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015, (Pub. L. 113-235), and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions) use of funds appropriated (or otherwise made available) is prohibited, if the Government determines that the grantee is not in compliance with the requirements of this provision.

f. The grantee must include the substance of this provision, including this paragraph (f), in subawards and contracts under such awards.

[END OF PROVISION]

CHILD SAFEGUARDING (JUNE 2015)
Applicable if contract/agreement may engage children

a. Because the activities to be funded under this award may involve children, or personnel engaged in the implementation of the award may come into contact with children, these activities could raise the risk of child abuse, exploitation, or neglect within USDOL-funded programs. The organization agrees to abide by the following child safeguarding core principles:

(1) Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;

(2) Prohibit all personnel from engaging in child abuse, exploitation, or neglect;

(3) Consider child safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations;

(4) Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image-generating activities of children;

(5) Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children; and

(6) Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel.

b. The organization must also include in their code of conduct for all personnel implementing USDOL-funded activities the child safeguarding principles in (a) (1) through (6).

c. The following definitions apply for purposes of this provision:

(1) Child: A child or children are defined as persons who have not attained 18 years of age.

(2) Child abuse, exploitation, or neglect: Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: any act or failure to act which results in death, serious physical or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child.

(3) Physical abuse: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the child.

(4) Sexual Abuse: Constitutes fondling a child's genitals, penetration, incest, rape, sodomy, indecent exposure, and exploitation through prostitution or the production of pornographic materials.

(5) Emotional abuse or ill treatment: Constitutes injury to the psychological capacity or emotional stability of the child caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: humiliation, control, isolation, withholding of information, or any other deliberate activity that makes the child feel diminished or embarrassed.

(6) Exploitation: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being.

(7) Neglect: Constitutes failure to provide for a child's basic needs within USDOL- funded activities that are responsible for the care of a child in the absence of the child's parent or guardian.

d. The grantee must insert the provisions in (a) and (b) in all sub-awards under this award

[END OF PROVISION]

MANDATORY DISCLOSURES (JULY 2015)
Applicable to all

Consistent with 2 CFR §200.113, applicants and grantees must disclose, in a timely manner, in writing to the USDOL Grant Office of the Inspector General, with a copy to the cognizant Grant

Officer, all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the Federal award. Subrecipients must disclose, in a timely manner, in writing to the USDOL Grant Office of the Inspector General and to the prime grantee (pass through entity) all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the Federal award.

Disclosures must be sent to:

Department of Labor
Office of the Inspector General
200 Constitutional Ave, NW Room S-5502
Washington, DC 20210
Phone: 1.800-347-3756 or 202-693-6999
URL: https://www.oig.dol.gov/hotline.htm

In addition, either party (the Grantee or USDOL) may request a telephone conference consultation at any time to discuss project related matters.

Failure to make required disclosures can result in any of the remedies described in 2 CFR §200.338 Remedies for noncompliance, including suspension or debarment (See 2 CFR 180, 2 CFR 780 and 31 U.S.C. 3321).

The grantee must include this mandatory disclosure requirement in all subawards and contracts under this award.

[END OF PROVISION]

ADVANCE PAYMENT AND REFUNDS (DECEMBER 2014)
Applicable when advance payments are authorized under contract/agreement.

a. The grantee is not required to maintain separate bank accounts for USDOL funds, unless otherwise required. However, when advances are authorized by this award, the grantee must deposit such funds in a reputable bank and be able to account for the receipt and expenditure of funds and interest earned on the advances provided by the U.S. Government (USG).

b. The grantee must maintain advances of USDOL funds in interest-bearing accounts, unless:

(1) The grantee receives less than $120,000 in USG awards per year;

(2) The best reasonably available interest-bearing account would not be expected to earn interest in excess of $250 in a twelve month period on USG cash balances; or

(3) The bank would require an average or minimum balance so high that it would not be practical to maintain the advance in an interest-bearing account.

c. The grantee must request advance payments for anticipated expenditures at time intervals as close as is administratively feasible to the actual disbursements by the grantee, and for the minimum amounts necessary.

f. Requests must state the estimated disbursements to be made during the period covered by the request, the estimated balance of cash on hand from prior advance requests, and the advance amount being requested.

[END OF PROVISION]

PROHIBITION OF ASSISTANCE TO DRUG TRAFFICKERS (JUNE 1999)
Applicable to all

a. USDOL and Partners reserves the right to terminate assistance to, or take other appropriate measures with respect to, any participant approved by USDOL who is found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined in 22 CFR 140.

b. For any loan over $1,000 made under this agreement, the grantee must insert a clause in the loan agreement stating that the loan is subject to immediate cancellation, acceleration, recall, or refund by the grantee if the borrower or a key individual of a borrower is found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined in 22 CFR 140.

Upon notice by USDOL of a determination under section (1) and at USDOL's option, the grantee agrees to immediately cancel, accelerate, or recall the loan, including refund in full of the outstanding balance. USDOL reserves the right to have the loan refund returned to USDOL.

c. The grantee agrees not to disburse, or sign documents committing the grantee to disburse, funds to a subrecipient designated by USDOL ("Designated Subrecipient") until advised by USDOL that: (i) any United States Government review of the Designated Subrecipient and its key individuals has been completed; (ii) any related certifications have been obtained; and (iii) the assistance to the Designated Subrecipient has been approved. Designation means that the subrecipient has been unilaterally selected by USDOL as the subrecipient. USDOL approval of a subrecipient, selected by another party, or joint selection by USDOL and another party is not designation.

The grantee must insert the following clause, or its substance, in its agreement with the Designated Subrecipient: *"The grantee reserves the right to terminate this [Agreement/Contract] or take other appropriate measures if the [Subrecipient] or a key individual of the [Subrecipient] is found to have been convicted of a narcotic offense or to have been engaged in drug trafficking as defined in 22 CFR 140."*

[END OF PROVISION]

TRAVEL AND INTERNATIONAL AIR TRANSPORTATION (DECEMBER 2014)

Applicable to all when costs for international travel or air transportation of cargo are anticipated to be funded by USDOL. This provision is not applicable if the grantee is providing for international travel costs with private funds as part of a cost-sharing requirement or with Program Income generated under this award.

a. TRAVEL COSTS

All travel costs must comply with the applicable cost principles and must be consistent with those normally allowed in like circumstances in the grantee's non-USDOL-funded activities. Costs incurred by employees and officers for travel, including air fare, costs of lodging, other subsistence, and incidental expenses, may be considered reasonable and allowable only to the extent such costs do not exceed reasonable charges normally allowed by the grantee in its regular operations as the result of the grantee organization's

written travel policy and are within the limits established by the applicable cost principles.

In the absence of a reasonable written policy regarding international travel costs, the standard for determining the reasonableness of reimbursement for international travel costs will be the Standardized Regulations (Government Civilians, Foreign Areas), published by the U.S. Department of State, as from time to time amended. The most current Standardized Regulations on international travel costs may be obtained from the GO. In the event that the cost for air fare exceeds the customary standard commercial airfare (coach or equivalent) or the lowest commercial discount airfare, the grantee must document one of the allowable exceptions from the applicable cost principles.

b. FLY AMERICA ACT RESTRICTIONS

(1) The grantee must use U.S. Flag Air Carriers for all international air transportation (including personal effects) funded by this award pursuant to the Fly America Act and its implementing regulations to the extent service by such carriers is available.

(2) In the event that the grantee selects a carrier other than a U.S. Flag Air Carrier for international air transportation, in order for the costs of such international air transportation to be allowable, the grantee must document such transportation in accordance with this provision and maintain such documentation pursuant to the Standard Provision, "Accounting, Audit and Records." The documentation must use one of the following reasons or other exception under the Fly America Act:

i. The grantee uses a European Union (EU) flag air carrier, which is an airline operating from an EU country that has signed the US-EU "Open Skies" agreement (http://www.state.gov/e/eb/rls/othr/ata/i/ic/170684.htm).

ii. Travel to or from one of the following countries on an airline of that country when no city pair fare is in effect for that leg (see http://apps.fas.gsa.gov/citypairs/search/):

1. Australia on an Australian airline,
2. Switzerland on a Swiss airline, or
3. Japan on a Japanese airline;

iii. Only for a particular leg of a route on which no US Flag Air Carrier provides service on that route;

iv. For a trip of 3 hours or less, the use of a US Flag Air Carrier at least doubles the travel time;

v. If the US Flag Air Carrier offers direct service, use of the US Flag

vi. Air Carrier would increase the travel time by more than 24 hours; or

vii. If the US Flag Air Carrier does not offer direct service,

1. Use of the US Flag Air Carrier increases the number of aircraft changes by 2 or more,
2. Use of the US Flag Air Carrier extends travel time by 6 hours or more, or
3. Use of the US Flag Air Carrier requires a layover at an overseas interchange of 4 hours or more.

c. DEFINITIONS

The terms used in this provision have the following meanings:

1. “Travel costs’’ means expenses for transportation, lodging, subsistence (meals and incidentals), and related expenses incurred by employees who are on travel status on official business of the grantee for any travel outside the country in which the organization is located. “Travel costs” do not include expenses incurred by employees who are not on official business of the grantee, such as rest and recuperation (R&R) travel offered as part of an employee’s benefits package that are consistent with the grantee’s personnel and travel policies and procedures.
2. “International air transportation" means international air travel by individuals (and their personal effects) or transportation of cargo by air between a place in the United States and a place outside thereof, or between two places both of which are outside the United States.
3. "U.S. Flag Air Carrier" means an air carrier on the list issued by the U.S. Department of Transportation at http://ostpxweb.dot.gov/aviation/certific/certlist.htm.

   U.S. Flag Air Carrier service also includes service provided under a code share agreement with another air carrier when the ticket, or documentation for an

electronic ticket, identifies the U.S. flag air carrier's designator code and flight number.

4. For this provision, the term "United States" includes the fifty states, Commonwealth of Puerto Rico, possessions of the United States, and the District of Columbia.

d. SUBAWARDS AND CONTRACTS

This provision must be included in all subawards and contracts under which this award will finance international air transportation.

[END OF PROVISION]

COST SHARE (JUNE 2012)

Applicable to all when contract/agreement will provide a Cost Share

a. During the period of this award, the grantee agrees to spend an amount of funds from non-U.S. Government sources specified as Cost Share, as provided in the award budget. Any Cost Share restrictions contained in this award take precedence over the terms of this provision.

b. The grantee's Cost Share under this award may include project costs incurred by the grantee from its own funds, or project costs financed with cash, services, or property contributed or donated to the grantee from other non-U.S. Government sources, including subrecipients. Not all Cost Share requires cash outlays by the grantee; examples are depreciation and use charges for buildings and equipment.

c. The grantee's Cost Share contributions, both cash and in-kind, must meet all of the following criteria:

    1. Are verifiable from the grantee's records;
    2. Are not included as cost share contributions for any other U.S. Government (USG) -assisted program;

3. Are necessary and reasonable for proper and efficient accomplishment of this award's objectives;
4. Are allowable under the Standard Provision, “Allowable Costs”;
5. Are not paid by the USG under another grant or agreement (unless the grant or agreement is authorized to be used for Cost Share); and
6. Are included in the approved budget.

d. The value of non-U.S. Government in-kind contributions applied to Cost Share is stablished by the following procedures:
    1. Volunteer services must be an integral and necessary part of an approved program. Rates for volunteers must be consistent with those paid for similar work in the grantee's organization, or consistent with those paid for similar work in the labor market in which the grantee competes. Volunteer services furnished by others must be valued at the employee's regular rate of pay, exclusive of overhead costs, provided these services are of the same skill for which the employee is normally paid. In any case, paid fringe benefits that are reasonable, allowable, and allocable may be included in the valuation.
    2. The assessed value of donated supplies and equipment must be reasonable and must not exceed the fair market value of the property at the time of the donation.
    3. The value of donated property must be determined in accordance with the usual accounting policies of the grantee with the following qualifications:
        i. If the purpose of this award is to assist the grantee in the acquisition of equipment, buildings, or land, the total value of the donated property may be claimed as Cost Share.
        ii. If the purpose of this award is to support activities that require the use of equipment, buildings, or land, normally only depreciation or use charges for equipment and buildings may be made. However, the DOL Grant Officer may approve the charge of the full value of equipment or other capital assets and fair rental charges for land.
        iii. The value of donated land and buildings must not exceed its fair market value at the time of donation to the grantee as established by an independent appraiser.

iv. The value of donated equipment must not exceed the fair market value of equipment of the same age and condition at the time of donation.

v. The value of donated space must not exceed the fair rental value of comparable space and facilities in a privately owned building in the same locality, as determined by adequate market research.

vi. The value of loaned equipment must not exceed its fair rental value.

e. The grantee must provide supporting records for in- kind contributions from third parties.

1. Volunteer services must be documented and, to the extent feasible, supported by the same methods used by the grantee for its employees.
2. The basis for determining the valuation for personal services, material, equipment, buildings, and land must be documented.

f. If the grantee expends less than the agreed upon Cost Share as specified in this award, the GO may apply the difference to reduce the amount of USDOL funding for the following funding period, require the grantee to refund the difference to USDOL when this award expires or is terminated, or reduce the amount of cost share required under the award.

g. In the event of any disallowance of expenditures from USDOL award funds, the grantee may substitute expenditures made with funds provided from non-U.S. Government sources, provided they are eligible in accordance with all the Standard Provisions of this award.

[END OF PROVISION]

ALTERNATIVE INCOME-GENERATING ACTIVITIES

Applicable to all

USDOL funds awarded under any USDOL-OCFT Cooperative Agreements may be used to provide micro-credits, revolving funds, or loan guarantees, as proposed by the Grantee and approved by USDOL. USDOL reserves the right to negotiate the exact nature, form, or scope of alternative income-generating activities and to approve these activities when proposed by the Grantee. Other permissible costs related to alternative income-generating activities for parents and children may include, but are not limited to, vocational or skills training, incidental tools, guides, manuals, and market feasibility studies.

[END OF PROVISION]

DIRECT CASH TRANSFERS TO COMMUNITIES, PARENTS, OR CHILDREN
Applicable to all

As a matter of policy, USDOL does not allow for direct cash transfers to target beneficiaries. Therefore, the Grantee may not provide direct cash transfers to communities, parents, or children. Purchase of incidental items is allowable if necessary for direct beneficiaries' participation in project activities and as a means of promoting sustainable reduction of child labor in the target group. Such beneficiary support costs could include direct costs such as uniforms, tool kits for livelihood interventions, school supplies, books, provision of tuition or transportation. If approved by USDOL, these items shall be purchased or paid for directly by the Grantee or subrecipients in the form of vouchers, or payment to the service provider, as opposed to transferring cash directly to project beneficiaries or other individuals. This ensures that the money goes for its intended purpose and is not diverted or lost. Grantees may propose microfinance interventions (e.g., micro-savings and micro-loans) or linkages to existing microfinance programs.

If the Grantee proposes the provision of additional beneficiary support costs other than those that were outlined and approved in its original application, the Grantee must first contact the GOR for approval, and specify: a) why these activities and interventions are necessary, and how they will contribute to the overall project goals; and b) how the disbursement of funds will be administered in order to maximize efficiency and minimize the risk of misuse. The Grantee must also address how beneficiary support costs will be made sustainable once the project is completed.

[END OF PROVISION]

CONSTRUCTION
Applicable to all

Construction with funds under the Cooperative Agreement is subject to USDOL approval and ordinarily should not exceed 10 percent of the project budget's direct costs. Funds for construction must be clearly specified in the budget. Any activities that lead to the creation of real property (e.g., a new classroom, an addition to an existing building, wells, or latrines) that is of a permanent nature must be classified under construction expenses. In addition, expenses in

support of construction cannot be classified as supplies, and should be regarded as construction activities.

If, after conducting the required needs assessment and inspection of schools and other learning environments attended by direct beneficiaries, a Grantee determines that additional funding for construction beyond the initially approved amount is needed in order to make schools or other learning environments safe and/or protect the health of the project's direct beneficiaries, the Grantee should notify USDOL as soon as possible.

In general, USDOL expects construction to be limited to improving existing infrastructure and facilities of schools and/or other learning environments attended by direct beneficiaries. In order to promote sustainability, USDOL encourages Grantees to secure matching funds, in-kind contributions, or other forms of cost sharing from the government, communities and local organizations when proposing construction activities. All modifications to the project's budget to address construction related changes must receive prior approval from USDOL. Modifications under the 10 percent budget revision threshold require an informal request to and approval by the GOR. Modifications above the 10 percent threshold require a formal project revision request to be approved by the Grant Officer.

[END OF PROVISION]

LOBBYING AND FUNDRAISING
Applicable to all subawards

Funds provided by USDOL for project expenditures under the Cooperative Agreement may not be used with the intent to influence a member of the U.S. Congress, a member of any U.S. Congressional staff, or any official of any Federal, State, or Local Government in the United States (hereinafter "government official(s)"), to favor, adopt, or oppose, by vote or otherwise, any U.S. legislation, law, ratification, policy, or appropriation, or to influence in any way the outcome of a political election in the United States, or to contribute to any political party or campaign in the United States, or for activities carried on for the purpose of supporting or knowingly preparing for such efforts. This includes awareness raising and advocacy activities that include fund-raising or lobbying of U.S. Federal, State, or Local Governments (see OMB Circular A-122, as codified at 2 CFR Part 230). This does not include communications for the purpose of providing information about the Grantee or its subrecipients and their programs or

activities in response to a request by any government official or for consideration or action on the merits of a federally-sponsored agreement or relevant regulatory matter by a government official.

A Cooperative Agreement grantee classified under revenue code as a 501(c)(4) entity (see 26 U.S.C. 501(c)(4)), may not engage in lobbying activities. According to the Lobbying Disclosure Act of 1995, as codified at 2 U.S.C. 1611, an organization, as described in Section 501(c)(4) of the Internal Revenue Code of 1986, that engages in lobbying activities directed toward the U.S. Government is not eligible for the receipt of federal funds constituting an award, grant, Cooperative Agreement, or loan.

[END OF PROVISION]

FUNDS TO HOST COUNTRY GOVERNMENTS
Applicable to all subawards

USDOL funds awarded under Cooperative Agreements are not intended to duplicate existing foreign government efforts or substitute for activities that are the responsibility of such governments. Therefore, in general, the Grantee may not provide any of the funds obligated under a Cooperative Agreement to a foreign government or entities that are agencies of, or operated by or for, a foreign state or government, ministries, officials, or political parties. Only after a competitive procurement process has been conducted and the Grantee has determined that no other entity in the country is able to provide direct services or undertake project activities, may subaward to foreign government agencies or entities that are agencies of, or operated by or for, a foreign state or government, ministries, officials or political parties. In such cases, the Grantee must receive prior USDOL approval before awarding the subaward. See Annex VI: Government Subaward Table.

[END OF PROVISION]

MISCELLANEOUS PROHIBITIONS
Applicable to all

USDOL funds may not be used to provide for:

1. The purchase of land;
2. The procurement of goods or services for personal use by the Grantee's employees;

3. Entertainment, including amusement, diversion, and social activities and any costs directly associated with entertainment (such as tickets, meals, lodging, rentals, transportation, and gratuities).
4. Costs of training or meetings and conferences, when the primary purpose is the dissemination of technical information, are allowable. This includes reasonable costs of meals and refreshments, transportation, rental of facilities and other items incidental to such meetings and conferences.
5. Costs related to child labor educational activities, such as street plays and theater, are allowable; and
6. Alcoholic beverages.

[END OF PROVISION]

PROSTITUITION
Applicable to all

The U.S. Government is opposed to prostitution and related activities which are inherently harmful and dehumanizing and contribute to trafficking in persons. U.S. NGOs, corporations, and their subrecipients cannot use funds provided by USDOL to lobby for, promote, or advocate the legalization or regulation of prostitution as a legitimate form of work. Foreign-based NGOs, corporations, and their subrecipients that receive USDOL funds cannot lobby for, promote or advocate the legalization or regulation of prostitution as a legitimate form of work while acting as a funded entity on a USDOL-funded project. It is the responsibility of the Grantee to ensure that all subrecipients meet these criteria.

[END OF PROVISION]

TRAFFICKING IN PERSONS, COMMERCIAL SEX ACTS, AND FORCED LABOR
Applicable as indicated below

1. *The following provisions are applicable to the Grantee, if it is a private entity:*

   The Grantee, its employees, subrecipients and subrecipients' employees may not a) engage in severe forms of trafficking in persons during the period of time that the award is in effect, b) procure a commercial sex act during the period of time that the award is in

effect; or c) use forced labor in the performance of the award or subaward under the award.

USDOL may unilaterally terminate this award, without penalty, if the Grantee or a subrecipient that is a private entity a) is determined to have violated a prohibition in paragraph A.1 of this section; or b) has an employee who is determined by the agency official authorized to terminate the award to have violated a prohibition in paragraph A.1 of this section through conduct that is either associated with performance under this award; or imputed to the Grantee or the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 29 CFR Part 98, "Government wide Debarment and Suspension (Non-procurement)."

2. *The following provision is applicable to the Grantee if it is other than a private entity*:

   USDOL may unilaterally terminate the Cooperative Agreement, without penalty, if a subrecipient that is a private entity a) is determined to have violated a prohibition in paragraph A.1 of this section; or b) has: an employee who is determined by the agency official authorized to terminate the award to have violated an applicable prohibition in paragraph A.1 of this section through conduct that is either associated with performance under this award; or imputed to the Grantee or the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 29 CFR Part 98, "Government wide Debarment and Suspension (Non-procurement)."

3. ***The following provisions are applicable to the Grantee regardless of whether it is or is not a private entity:***

   The Grantee must inform USDOL immediately of any information the Grantee receives from any source alleging a violation of a prohibition in paragraph A.1 of this section.

   USDOL's right to terminate unilaterally that is described in paragraph A.2 or B.1 of this section i) implements section 106(g) of the Trafficking Victims Protection Act of 2000 (TVPA), as amended (22 U.S.C. 7104(g)), and ii) is in addition to all other remedies for noncompliance that are available to USDOL under this Cooperative Agreement.

   The Grantee must include the requirements of paragraph A.1 of this section in any subaward it makes to a private entity using USDOL funds.

For purposes of this section:

- "**Employee**" means either a) an individual employed by you or a subrecipient who is engaged in the performance of the project or program under this award; or b) another person engaged in the performance of the project or program under this award and not compensated by you including, but not limited to, a volunteer or individual whose services are contributed by a third party as an in-kind contribution toward cost sharing or matching requirements.
- "**Forced labor**" means labor obtained by any of the following methods: the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.
- "**Private entity**" a) means any entity other than a State, local government, Indian tribe, or foreign public entity, as those terms are defined in 2 CFR 175.25 and b) includes c) a nonprofit organization, including any nonprofit institution of higher education, hospital, or tribal organization other than one included in the definition of Indian tribe at 2 CFR 175.25 (b) a for-profit organization.
- "**Severe forms of trafficking in persons**," "**commercial sex act**," and "**coercion**" have the meanings given at section 103 of the TVPA, as amended (22 USC 7102),

[END OF PROVISION]

ELIGIBILITY OF SUBRECIPIENTS OF ANTI-TRAFFICKING (JUNE 2012)

Applicable to all

The grantee must not provide funds made available to carry out this award to any organization that has not stated in either a grant application, a grant agreement, or both, that it does not promote, support, or advocate the legalization or practice of prostitution. Such a statement is not required, however, if the subrecipient organization provides services to individuals solely after they are no longer engaged in activities that resulted from such victims being trafficked.

If required, the subrecipient organization's statement may be true by virtue of the organization's lack of any policy regarding the issue.

[END OF PROVISION]

PROHIBITION ON THE USE OF ANTI-TRAFFICKING FUNDS TO PROMOTE, SUPPORT, OR ADVOCATE FOR THE LEGALIZATION OR PRACTICE OF PROSTITUTION (JUNE 2012)

Applicable to all

None of the funds made available under this award may be used to promote, support, or advocate the legalization or practice of prostitution. However, this prohibition does not preclude assistance designed to ameliorate the suffering of, or health risks to, victims while they are being trafficked or after they are out of the situation that resulted in such victims being trafficked.

[END OF PROVISION]

STATEMENT FOR IMPLEMENTERS OF ANTI-TRAFFICKING ACTIVITIES ON LACK OF SUPPORT FOR PROSTITUTION (JUNE 2012)

Applicable to all

"Severe forms of trafficking in persons" means

(1) sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
(2) the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

By accepting this award, the grantee hereby states that it does not promote, support, or advocate the legalization or practice of prostitution. This statement may be true by virtue of the organization's lack of any policy regarding the issue.

[END OF PROVISION]

INHERENTLY RELIGIOUS ACTIVITIES

Applicable to all subawards

The U.S. Government is generally prohibited from providing direct financial assistance for inherently religious activities. The Grantee and subrecipients may work with and make subawards to religious institutions; however, Federal funds provided under a USDOL-awarded

Cooperative Agreement may not be used for religious instruction, worship, prayer, proselytizing, other inherently religious activities, or the purchase of religious materials. Neutral, non-religious criteria that neither favor nor disfavor religion will be employed in the selection of Grantees and must be employed by the Grantee in the selection of subrecipients. This provision must be included in all subawards issued under the Cooperative Agreement.

Any inherently religious activities conducted by the Grantee must be clearly separated in time or physical space from activities funded by USDOL. Grantees must segregate from Federal and matching funds (neither of which can be used to fund inherently religious activities), and account for separately, any non-federal and non-matching funds (or allocable portion of those funds) used for inherently religious activities.

Additionally, direct beneficiaries of the project must have a clear understanding that their enrollment in a USDOL-funded project is not conditioned on their participation in any religious activities. Direct beneficiaries must have a clear understanding that a decision to not participate in any inherently religious activity will in no way impact, or result in any negative consequences to their standing, participation in or receipt of benefits from a USDOL-funded project.

If the Grantee is unclear whether a given project activity may involve an inherently religious activity, the Grantee should consult with USDOL prior to implementing the activity.

[END OF PROVISION]

TERRORISM
Applicable to all

The Grantee is reminded that U.S. law, including Executive Orders, prohibits transactions with, and the provision of resources and support to, individuals and organizations associated with terrorism. It is the legal responsibility of the Grantee to ensure compliance with these Executive Orders and laws. It is the policy of USDOL to seek to ensure that none of its funds are used, directly or indirectly, to provide support to individuals or entities associated with terrorism. The Grantee must check the applicable Web site to assess available information on parties that are excluded from receiving federal financial and nonfinancial assistance and benefits. See http://www.treas.gov/offices/enforcement/ofac/sdn/t11sdn.pdf .

[END OF PROVISION]